

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS <i>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30</i>				1. REQUISITION NUMBER N10PNAV/2023038		PAGE 1 OF 94	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER N0018925QZ320	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME ELENE Y. CHAPPELLE				b. TELEPHONE NUMBER (No Collect Calls) 215-697-0004	
9. ISSUED BY NAVSUP FLC NORFOLK CONTRACTING PHILADELPHIA OFFICE 700 ROBBINS AVENUE, BLDG 2B PHILADELPHIA PA 19111-5083 TEL: FAX:		CODE N00189		10. THIS ACQUISITION IS ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: 611430 SIZE STANDARD: \$15,000,000			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING	
						14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP	
15. DELIVER TO SURFACE WARFARE OFFICER SCHOOL COMMAND GEMMA POWELL 2331 ISHERWOOD AVE BLDG 236 GREAT LAKES IL 60088 TEL: (847) 688-4862 #123 FAX:		CODE N63190		16. ADMINISTERED BY CODE			
17a. CONTRACTOR/OFFEROR TELEPHONE NO.		CODE FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED ☐ SEE A DDENDUM					
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1. 52.212-4. FAR 52.212-3. 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED							
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED							
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) TEL: EMAIL:		31c. DATE SIGNED	

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS (CONTINUED)				PAGE 2 OF 94	
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				
32a. QUANTITY IN COLUMN 21 HAS BEEN ☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____					
32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT		37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL		
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY			
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT 41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42a. RECEIVED BY <i>(Print)</i>		
			42b. RECEIVED AT <i>(Location)</i>		
			42c. DATE REC'D <i>(YY/MM/DD)</i>	42d. TOTAL CONTAINERS	

Section SF 1449 - CONTINUATION SHEET

GENERAL**RFQ vs. RFP**

If appearing in this solicitation, the term “RFP” shall mean “RFQ,” the words “proposal” and “offer” shall mean “quote,” and the word “offeror” shall mean “quoter.”

Period of Performance

The ordering period of the resultant contract will commence 1 July 2026 through 30 June 2031 and include a six-month option period in accordance with FAR 52.217-8 thereafter. The dates listed in the Delivery Information section of this solicitation are provided for informational purposes only and represent the estimated start and end dates of the contract. These dates may be updated by the Government prior to award.

Solicitation Notes

- a.) Quotes are due on or before 12:00 PM EST on 5 February 2026.
- b.) Questions regarding this solicitation are due no later than the close of business January 22nd
- c.) METHOD OF QUOTE SUBMISSION:

The NECO website has a “submit bid” button next to the solicitation number. DO NOT use the “submit bid” button on NECO to submit your quote. Quoters shall follow the method of quote submission set forth in FAR 52.212-1 Addendum contained herein. All questions and quotes shall be submitted via email to the point of contact listed below for this solicitation.

- d.) The point of contact for this solicitation is:

Name: Ms. Elene Chappelle

Email: elene.y.chappelle.civ@us.navy.mil

- e.) All correspondence related to this RFQ shall be provided in writing via email to the point of contact listed herein.

PERFORMANCE WORK STATEMENT**PERFORMANCE WORK STATEMENT (PWS)****for Sexual Assault Prevention Training for the****Surface Warfare Engineering School Command, Great Lakes (SWESC GL)**

1.0 Background Surface Warfare Engineering School Command (SWESC) is a major training facility of the United States Navy. The Command mission is to deliver highly skilled, technically proficient, disciplined and motivated Sailors to the Fleet. Surface Warfare Engineering School Command (SWESC) is located aboard Naval Station, Great Lakes, approximately 36 miles north of Chicago, Illinois.

SWESC provides for the continued *Sailorization* of new boot camp sailors and supporting fleet returnees for success in their Navy careers with Command Indoctrination, Navy Military Training, and other essential training. SWESC ensures Navy students maintain the highest standards of personal and military conduct, while undergoing required technical training at local learning centers, like SWESC and Surface Combat Systems Training Command (SCSTC), where sailors also attend advance through various Navy Class “A” and “C” Schools.

Sexual assault is devastating to both individual Sailors and the mission effectiveness of Navy units. The Secretary of the Navy has the high-priority strategic objective of creating a department-wide culture of respect and were sexual

assault is eliminated and never tolerated. Unfortunately, sexual assault remains a pervasive nation-wide problem, whereby specific military strategies are objectively being applied to effort to prevent sexual assaults by educating the troops.

1.1 Scope of Work

This requirement is to provide sexual assault prevention training to sailors that have completed basic training at Recruit Training Command (RTC) coming to both SWESC and SCSTC for advanced training prior to reporting to the fleet. This requirement will be directed at a student body consisting of young adults, with limited life experience and who have recently joined the military.

The training programs shall use interactive and improvisational approaches in an “edutainment” format to provide sexual assault prevention training, to reduce sexual assaults. SWESC has collaborated with other military commands and continues to work with them to develop, demonstrate, and assess the effectiveness of individual and combined initiatives to measurably change attitudes and behaviors that lead to the prevention of sexual assaults involving students on the base and in the Navy. Experts have underscored the importance of simultaneous innovative approaches to reach young Sailors with targeted messages, to influence their attitudes and behavior.

The program’s initial goals were to determine if this instructional methodology would be effective in shifting unacceptable behavior/attitudes by reinforcing good decision making and providing deterrents for unacceptable behavior in a young student population. So far, the analysis on this instructional methodology continues to show that it has been very effective in reaching the target audience.

The contractor shall provide adequate numbers of qualified facilitators, supervision, management, equipment, and services (except as specified herein as Government provided) to perform the contract requirements for sexual assault prevention training.

Training shall utilize scenario-based facilitated situations to draw the audience, while enhance retention and training effectiveness on young Sailors. The training shall utilize the edutainment presentation as the instructional methodology, to focus on the key concepts regarding the role of social pressures, male and female role stereotypes, and unrealistic fantasies occurring in the social and military settings that lead to sexual assault. The program content shall integrate the Navy Core Values of Honor, Courage, and Commitment, as an integral part of the sexual assault prevention presentation.

2.0 Acronyms and Definitions

2.1 Acronyms

ACO Administrative Contracting Officer
 ACOR Alternate Contracting Officer’s Representative
 AI Awaiting Instruction
 AT Awaiting Transfer
 BI Bystander Intervention Training
 CAC Common Access Card
 CDR Contract Discrepancy Report
 CLIN Contract Line-Item Number
 CO Commanding Officer
 COC Chain of Command
 COR Contracting Officer’s Representative
 DoD Department of Defense
 DoN Department of the Navy
 DoN SAPRO Department of the Navy Sexual Assault Prevention and Response Office
 FAR Federal Acquisition Regulation
 GPP Government Provided Property
 IDIQ Indefinite Delivery Indefinite Quantity N0018921DZ016 P00011 Page 4 of 13
 KO Contracting Officer
 KTR Contractor

NAVSTA Naval Station
 NETC Naval Education and Training Center
 OPNAVINST Office of Chief of Naval Operations Instructions
 PCO Procurement Contracting Officer
 PII Personally Identifiable Information
 POC Point of Contact
 POP Period of Performance
 PRS Performance Requirements Summary
 PWS Performance Work Statement
 QA Quality Assurance
 QASP Quality Assurance Surveillance Plan (Government)
 QCP Quality Control Plan (Contractor)
 SAPR Sexual Assault Prevention and Response
 SARC Sexual Assault Response Coordinator
 SECNAVINST Secretary of the Navy Instruction
 SME Subject Matter Expert
 SCSTC Surface Combat Systems Training Command
 SWSC Surface Warfare School Command
 TA Technical Assistant
 TRANET Training Network
 SWESC Surface Warfare Engineering School Command, Great Lakes, IL.
 WAWF Wide Area Workflow

2.2 Definitions

Alternate Contracting Officer's Representative (ACOR) - A Government official appointed in writing by the contracting officer and designated in the contract, who assists the COR in providing technical oversight and clarification with respects to the contract specifications or Performance Work Statement (PWS) requirements.

Contracting Officer's Representative (COR) - A Government official appointed in writing by the contracting officer and designated in the contract, who provides technical oversight and clarification with respects to the contract specifications or Performance Work Statement requirements.

Contractor Furnished Equipment/Property – All other equipment/property/facilities/services not identified as Government provided and to be furnished by the Contractor for support of the work to be performed under the contract.

Edutainment – The presentation of informative or educational material utilizing an interactive, improvisational scenario-based instruction in an entertaining style. It includes a mix of improvisational and scripted comedy, along with audience interaction, to culminate in candid informed discussions about the topic information.

Facilitator - A person who delivers or presents training material to a group of students.

Government Provided Property/Equipment/Facilities/Services – All items (property/equipment/facilities/services) provided by the Government to the Contractor for their use with or in support of the work in the contract for the specified period of performance.

Mobilization- The period immediately preceding start date of training sessions, during which the Contractor shall acquire personnel, conduct personnel training operations, and perform all other mobilization tasks necessary to prepare the Contractor for assumption of full performance responsibilities.

Quality Control Plan (QCP) – Contractor's plan to ensure quality of their work in performance of the contract requirements.

Restricted Reporting – The reporting of a sexual assault is confidential, and COC/law enforcement will not be notified, investigation will not be performed, and reporting will only be to the SARC, victim advocate, active-duty medical personnel, and chaplain with the victim being offered medical attention, advocacy, and counseling.

Subject Matter Expert (SME) – An individual who has a thorough knowledge of a job, duties/tasks, or a particular topic.

Technical Assistant (TA) – A Government person who may be assigned to provide technical and/or administrative assistance to the COR/ACOR for the purposes of quality assurance and data gathering.

SWESC Project Manager – Surface Warfare Engineering School Command government point of contact (POC) with assigned team members who will conduct overall program management of the requirement.

Unrestricted Reporting – The Command and law enforcement will be notified, a report will be completed, and medical attention, advocacy, and counseling will be offered to the victim.

3.0 Government Provided Equipment/Facilities/Services

The Government shall provide the following property, equipment, facilities, and services to the contractor for accomplishing the training required in this contract's PWS.

3.1 The Government shall provide the training facility spaces for all training sessions. The facility space for large group sessions will consist of an auditorium size space with a raised stage, a government provided sound system with cordless microphones, and seating for the audience. The facility spaces for small group sessions will consist of classroom size space, student seating, easels with paper, and markers. The facility spaces for staff /leadership presentations will consist of auditorium/classroom type space with audience seating, easels with paper, and markers will be provided.

3.2 The Government shall provide an on-site office space approximately 69 total square feet currently located in Building 215 at SWESC GL (Room 176). The Government shall provide the existing office furniture currently located in this space and as identified in **Attachment 2**. Any additional property or equipment required for the space shall be at the expense of the contractor.

3.2.1 The contractor shall do light custodial work of this space (i.e. empty trash daily, dust, sweep/vacuum). Any general cleaning supplies (duster, broom, mop dustpan and brush, all-purpose cleaner general cleaner and towels) that are available will be provided at the contractor's request. Specific cleaning supplies must be provided by the contractor. The Government will do any heavy cleaning (i.e. stripping, waxing, shampooing) if required and upon the discretion of the Government.

3.2.2 The Contractor shall comply and actively participate in the Base Energy Conservation Program. Specifically, the Contractor shall:

- a. Ensure lights are used only in classroom areas where and when work is being performed.
- b. Not adjust heating / ventilation/ air conditioning mechanical equipment controls or open windows/ doors.
- c. Turn off all water faucets and valves after use.
- d. Use Government telephones only for official Government business and emergencies.
- e. Ensure all copiers, fax machines, typewriters, shredders and computer equipment being used by the Contractor are turned off at the close of business each day unless such equipment goes into a standby mode.

3.2.3 The Contractor shall be responsible for all costs associated with installation and usage charges for telephone and internet access services and equipment not provided by the Government.

3.3 All Government provided property, equipment, and facilities will remain the property of the Government and shall be returned to the Government upon completion of the contract services less normal wear and tear. All assigned contractor personnel supporting this contract shall return any Government provided items in their possession that were used during the performance period at the end of the contract.

3.4 The contractor shall safeguard all Government provided property, equipment, and facilities and shall secure all items at the close of each work period.

4.0 Contractor Furnished Property/Equipment/Facilities/Services

The contractor shall provide all other property, equipment, facilities, and services, not specifically identified in section 3.0 above as Government provided and which the contractor deems necessary for performance of this contract. The contractor shall provide a backup sound system in the event the Government system fails. The contractor shall provide all site office consumable office supplies, equipment, long distance phone requirements, personal computers and necessary internet access.

5.0 Performance Requirements

5.1 Overview

The contractor shall provide an interactive and improvisational educational program which successfully engages diverse audiences of Sailors on the topics of consent, rape and sexual assault prevention. The educational program must be already developed, being utilized, and able to be customized for SWESC GL Sailor demographic and address the unique Navy training environment. This educational program shall shift from rule-based instruction models to incorporate state-of-the-art insights on sexual assault prevention and individual moral development, to increase their effectiveness in a military context. The contractor's presentations must engage both male and female Sailors in a positive manner and refrain from strategies that utilize blame or humiliation. The contractor program shall mix improvisational and scripted comedy, along with audience interaction, to culminate in candid, informed discussions about these serious topics. The contractor program content shall also integrate the Navy Core Values of Honor, Courage, and Commitment as key concepts.

5.2 Kick-Off Meeting

During the contract mobilization period, the contractor is required to attend a "kick-off" meeting with the Government at SWESC. This meeting will review the contract requirements and begin coordination, discussion, and scheduling of the initial large group, small group, and staff / leadership sessions.

The contractor shall provide at this meeting a written sample of the training material/objectives to the Government. In addition, the contractor shall explain how the Navy Core Values are incorporated into their curriculum.

The contractor shall modify their training material/objectives and curriculum assessment tools to include any required changes as discussed at this meeting with SWESC leadership and they shall be incorporated in time for the initial sessions.

5.3 Curriculum and Assessment Tools Revisions

Any revisions to the contractor's training material/objectives and/or curriculum assessment tools shall be incorporated into the material after review and approval by the SWESC Project Manager. Implementation shall then be prior to the next training session. The COR shall be the primary POC for all contractor requested changes.

5.4 Contractor's Project Coordinator and Alternate

The contractor shall provide two individuals to be designated as the contractor's project coordinator and alternate who shall be available daily either on-site or by phone/email. These personnel shall be knowledgeable in all the performance work statement requirements. They shall be empowered by the contractor to oversee the daily execution of the contractor's performances, collect feedback on their efficacy, ensure Government approved revisions are incorporated into the curriculum/assessments, and provide supervision for on-site personnel. The project coordinator and alternate shall serve as the contractor's central POC for coordinating the details of all contractor activities with staffs of SWESC GL, to include designation of venues and training schedules.

Responsibilities shall also include overall program review discussions with senior leaders at SWESC GL and other Navy organizations along with all required meetings with local command personnel.

5.5 Monthly Reports

The contractor shall provide monthly written reports of contractor training session conducted, assessment results/analysis, recommended training curriculum changes, and reporting of other pertinent information/issues related to contractor performance. The contractor shall revise each report as required after review by the Government. These reports shall be reviewed during monthly meetings between the Government and Contractor.

5.6 Staff/Leadership Workshops

5.6.1 Staff/Leadership Workshop Concepts

The contractor shall conduct a half day (four hour maximum) workshop for staff/leadership on a quarterly basis totaling four workshops in a calendar year. Content shall include presentations by subject matter experts. Topics may cover reinforcement of core concepts on the roles and responsibilities of a bystander, direct challenges of the notions of victim blaming and any other perpetuations of rape mythology, review of specific tools for leaders and staff in these areas of discussion, demonstrations (in whole or in part) of large-group and small-group sessions, and a

synopsis of the small and large group sessions. Overall, these workshops shall serve the dual purpose of review, assessment, and adjustment of program activities and the educational and skills development of staff and leadership in this area.

5.6.2 Logistics

Sessions shall be held once per quarter (estimated) on a date and time to be determined by the Government for a total of 4 workshops maximum per year. Sessions shall be held individually. Workshops shall be conducted in a Government provided auditorium setting for an audience with seating for approximately 150 personnel. The Government will provide a single sound system to be used for these workshops, but the contractor has the option for using their own system if desired. The Government will provide easels with paper as required for the contractor's use. Any hard copy literature handouts for the sessions shall be provided by the contractor and include duplication costs.

5.7 Large Group Sessions

5.7.1 Large Group Session Concept

The contractor shall provide a single weekly, interactive, improvisational, 60- to 90-minute, two-person facilitated session that directly target audiences of up to a maximum of 300 Navy students who recently joined the service. Scenarios shall be used to explore social norms, myths, and male and female stereotypes. Presentations shall use a discussion-based format incorporating humor, key components of bystander intervention education, and an explicit moral argument against sexual violence.

5.7.2 Logistics

Sessions shall be held once a week (Monday or Tuesday for planned holidays) with the potential for a second session to be held no more than once every two months at dates and times to be determined by the Government. This is an estimated total of 50 weekly sessions per year excluding the two-week holiday stand down period every December. Sessions shall be held individually. Sessions shall be held in the Government provided auditorium setting with a raised stage and audience seating. The same Government provided sound system for the staff/leadership workshops can be used for these sessions and the contractor has the option of providing their own sound system. The large group sessions shall be scheduled on different days than the small group sessions.

5.8

5.8.1 Small-Group Concepts

The contractor shall provide a coordinated program of 60 to 90 minute, small-group discussion sessions that serve as an in-depth follow-up to the large-group presentation. The small group sessions shall have a minimum of ten students and a maximum of 30 students per class and shall be separated by male and female in different classrooms. Each group shall be facilitated by trained contractor personnel, preferably the same as the male and female class. Curriculum should provide the students with an opportunity to process and build on sexual assault prevention messages from the large group sessions while achieving other tailored learning objectives specific to the males and females of each smaller group session.

5.8.2 Logistics

Sessions shall be held approximately two days a week (Wednesdays and Thursdays) on dates and times to be determined by the Government for a total of 50 weeks per year excluding the two-week holiday stand down period every December. There shall be approximately two to ~~six~~ sessions held per day for two days every week equaling a maximum of ~~twelve~~ sessions total for the week. The multiple daily sessions shall all start at the same time and run concurrently usually with a single female and multiple male sessions. The small group sessions shall be taught on different days from the weekly large group session and the rescheduling of any sessions cancelled due to federal holidays or non-training days will be coordinated by the Government.

5.9 Participant Selection

SWESC will determine the male and female placement of each large and small group training session within the workday along with any other parameters for the composition of students attending all sessions.

5.10 Session Concepts

All sessions shall focus on the following concepts:

- a. Communicating the components of consent required in a sexual situation.
- b. Understanding the role alcohol plays in sexual assaults when the initiator of sexual contact is unable to get consent from someone who is intoxicated.
- c. Understanding what the role of a predators, enablers, bystanders and interveners are in sexual assault.
- d. Understanding the harm in making connections between sexual harassment and sexist remarks.
- e. Understanding how everyone can act as a change agent within Navy culture to ensure it does not perpetuate into a climate that enables sex offenders to operate.
- f. Interpreting signs that an intervention is warranted.
- g. Having confidence in intervening as a bystander.
- h. Defining the Navy requirements for restricted and unrestricted reporting

5.11 Evaluations

SWESC will continue to evaluate and measure the effectiveness of the presentation methodology to determine if this type of training method is conducive to SWESC's type of environment and determine what curriculum changes, if any, are required throughout the program and for the life of the contract.

5.12 Scheduled Meetings

On a monthly basis, as required, the contractor shall meet **onsite at SWESC** with the SWESC Project Manager/Team/COR to report on any program concerns and provide any recommendations for instructional methodology or curriculum content changes that could enhance the effectiveness of the training.

5.13 Contractor Performance

The contractor shall be responsible for providing all the training identified in the PWS at specific times on the days identified by the Government. The contractor's project coordinator shall advise the SWESC Project Manager and COR of any problems or potential concerns affecting their performance, as soon as they are identified.

6.0 Performance Details

6.1 Performance Period

The period of performance shall be identified in the contractual document/order.

6.2 Place of Performance

All services shall be performed at SWESC, Great Lakes – 320A Dewey Avenue, Great Lakes, IL 60088-5100. Specific building locations will be provided after award.

6.3 Hours of Work

Specific training session hours of support have yet to be determined; however, the contractor shall be able to provide onsite facilitators to conduct training sessions during the hours of 0800 to 2000 hours (minimum of 8:00 AM to 8:00 PM), Monday through Friday. No services shall be provided, and no charges shall be billed to any contract on any of the Federal Holidays listed at <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/#url=Overview>.

****Unless otherwise noted, training sessions are not required for approximately two weeks during the Christmas/New Year's holiday stand-down leave period.**

The contractor and Government understand and agree that there may be circumstances that prevent contractor employees from providing services due to non-training days designated by the Government or inaccessibility to the work site due to unscheduled closure (weather, national emergency, changed threat levels etc.).

The Government will advise the contractor no later than the 15th of each month, in writing, regarding the projected training sessions for the following month. The contractor shall be notified as changes occur thereafter and the contractor shall not invoice for any training sessions that do not convene unless the cancellation occurs prior to the

scheduled day of the performance or is canceled by the contractor. The contractor shall submit a monthly schedule of facilitators that shall be conducting training no later than the 15th day of each month for the follow-on month.

6.4 Travel

Non-local travel is not required. Local travel within a 50-mile radius and in/around the base is the responsibility of the contractor, no reimbursements will be allowed.

6.5 Personnel Removal

The Government reserves the right to request removal of contractor personnel, regardless of prior clearance or adjudication status, whose actions, while assigned to this contract, clearly conflict with the interests of the Government.

6.6 Rules and Regulations

All contractor personnel shall conform to and comply with the rules and regulations of the Department of Defense (DoD), Department of the Navy (DoN), and the specific Government installation, for contract personnel integrity, grooming, conduct, speech, student fraternization, safety, security, and parking. The morale and motivation of student and instructional personnel shall be maintained at a maximum level to ensure a favorable environment for learning. All contractor personnel shall attend and/or perform Government all-hands training (safety, security, privacy act information, etc...) as required. This totals approximately five hours per year per individual.

6.7 Badges/Permits/Decals

Access to the work location requires a government issued Defense Biometric Identification System (DBIDS) identification cards which must be always displayed on persons. Vehicles will be required to be locally registered with the Visitor Control Center prior to vehicle access on the base. The Contractor shall provide to the COR/ ACOR all required investigation information to facilitate the issuance of DBIS cards for all personnel requiring Naval Base access. Company enrollment and employee registration are renewable yearly and must be tracked by the contractor to coordinate with the COR reissuance of for any other base access issues.

The contractor shall furnish in writing to the COR, the names and phone numbers of the contractor's project coordinator and alternate no later than five workdays after contract award. The contractor shall notify the COR, within one working day, whenever changes are made to these positions. The contractor shall furnish a list of contractor personnel, ten (10) workdays prior to the start of contract performance, and thereafter as changes occur. The contractor shall notify the SWESC Project Manager and COR, within 24 hours, upon personnel resignation, reassignment, termination, or completion of portions of the contract. Whenever contractor employees resign, are dismissed, or laid off, the contractor shall **coordinate with DBIS cards for the return of the ex-employee's CAC.**

6.8 Key Control/Physical Security Compliance

The Government will be responsible for key security system and, as needed, provide keys to the contractor. The Contractor shall safeguard and maintain control over assigned keys. The contractor shall return keys to the COR or assigned government point of contact that are not needed or upon contractor personnel termination of work under this contract. In the event keys, other than master keys, are lost or duplicated, the contractor shall be required, upon the direction of the Contracting Officer (KO), to re-key or replace the affected lock(s). The Government reserves the right in such a situation to perform re-keying at the contractor's expense. In the event a master key is lost or duplicated, the Government will replace all locks and keys for that system at contractor's expense. The contractor shall prohibit the use of Government keys by any persons other than the contractor's employees and prohibit the opening of locked areas to permit entry of person(s) other than Government personnel; Government approved contractors/ visitors, or the contractor's own employees, engaged in performance of contract inspection/work requirements in those areas.

The contractor shall comply with all current and applicable DoD, DoN, and SWESC/Naval Station (NAVSTA) local security instructions including base parking instructions along with instructions/directives regarding physical security. As applicable, the contractor shall comply with all information technology (IT) systems security requirements and with any requirements to update databases designed to capture and manage personnel, billets, and total workforce resources including contractors, by providing employee personnel information as required.

6.9 Safety and Accident Reports

The contractor shall address any safety related problems to the COR. All accidents resulting in death, trauma, or occupational disease involving contractor employees and/or students during contract working hours shall be reported immediately to the Technical Assistant (TA) and the COR.

6.10 Dress Code Requirements/Grooming Standards

It must be recognized that this course of instruction is taught at a high-visibility military command. The contractor personnel shall provide positive leadership to young men and women in a military training scenario. As such, it is imperative that standards of dress, grooming, and character be appropriate to a traditional military organization.

6.11 Authority of Contractor Instructors and Relationship to Military Authorities

Contractor personnel shall maintain an orderly, professional atmosphere in all sessions under their cognizance and shall have authority commensurate with this responsibility. Students whose conduct is not conducive to such an atmosphere shall be cautioned and counseled, and if the inappropriate conduct continues, shall be referred to the military TA or designated POC.

The contract facilitators shall report any disciplinary problem (e.g., fraternization, sexual harassment, racial discrimination) between contract employees and military staff or students to the contractor's on-site project coordinator, who shall notify the Military TA and COR immediately with their knowledge of the occurrence. Upon notification to the COR that a student complaint involving the disciplinary problems have been received, the contractor shall investigate the complaint and submit a full report of investigation to the COR. The facilitator named in the complaint shall be removed from teaching while the investigation is being conducted. If the investigation determines the complaint is justified; the contractor's response shall include a corrective action plan to resolve the matter. All responses shall be provided to the COR within three workdays of notification.

6.12 Rosters

The Government will muster students and provide rosters to the contractor, where appropriate.

6.13 Meeting Minutes

The contractor shall provide written minutes (electronic version) of all meetings with the Government (within five workdays) to the COR and SWESC GL Project Manager. The meeting minutes shall specifically identify any items that may affect and/or change the contract terms/conditions/performance work statement (PWS) requirements and will not implement such changes without express written approval of the KO. Any verbal reports shall be followed up with written reports within 24 hours.

7.0 Knowledge and Expertise - Contractor Qualification

7.1 Staff

The contractor shall provide personnel with the following knowledge and expertise:

Experience in leading and facilitating discussions on sensitive topics in large and small groups of young adults, including the ability to foster active discussion about risk reduction, rape prevention, and the key role of engaging bystanders as a means of reducing sexual violence.

Experience in using interactive and improvisational scenario-based instruction techniques to convey key concepts. Facilitators who can facilitate discussions consistent with Navy Core Values, terminology, and customs.

The contractor shall ensure the facilitators are ready to teach the sessions assigned to them and meet the standards of the contractor's approved quality control plan (QCP).

8.0 Quality

Both the contractor and Government have responsibilities for providing and ensuring quality of services, respectively.

8.1 Contractor Quality Control

The contractor shall establish and maintain a complete QCP to ensure the performance requirements of this contract are provided as specified. The contractor's QCP shall be provided to the COR no later than 15 workdays prior to the start of contract performance for review and subsequent approval by the KO within 45 days of receipt. The contractor shall make appropriate modifications (at no additional costs to the government) and obtain acceptance of

the plan by the COR. The COR will notify the contractor of acceptance or required modifications to the plan within 30 workdays of receipt of the changes. Changes to the plan during the period of contract performance shall be submitted to the COR, with a copy to the KO for approval.

As part of the QCP, the contractor shall perform all inspections and verifications necessary to substantiate conformance to contract requirements. The Government has the right to require revisions of the QCP (at no cost to the Government) should the incorporated plan fail to control the quality of services provided at any time during the contract performance.

8.2 Contractor Quality Control Plan Specifics

The plan shall include, but is not limited to the following:

- A description of the inspection system covering all services listed.
- The specification of inspection frequency.
- The title of the individual(s) who shall perform the inspection and their organizational placement.
- A description of the methods for identifying, correcting, and preventing defects in the quality of service performed before the level becomes unacceptable.

Electronic records of all inspections conducted by the contractor are required. The format of the inspection record shall include, but is not limited to, the following:

- Date, time, and location of the inspection.
- A signature block for the person who performed the inspection.
- Rating of acceptable or unacceptable.
- Area designated for deficiencies noted and corrective action taken.
- Total number of inspections.

Government verification inspection of services shall not constitute acceptance, nor replace the contractor's own inspection process or in any way relieve the contractor of any responsibility or actions required to assure highest quality of services rendered.

8.3 Government Quality Assurance

The Government will monitor and evaluate the contractor's performance under this contract using the quality assurance surveillance plan (QASP) developed by the Government in **Attachment 3**. The Government reserves the right to review all services being provided to determine compliance and conformity with the PWS. Typical procedures might include summary management reports, scheduled/unscheduled spot check reviews of performances of selected staff/student (administered only to students who have completed or participated in the relevant training), and customer complaints.

The Government quality assurance will be conducted by the COR with assistance by the TA. The Government's QASP will not limit any other rights or remedies available to the Government in case of unsatisfactory contractor performance.

8.4 Performance Evaluation Meetings

The contractor's project coordinator shall meet at least at least twice during the first month of performance to discuss issues and concerns with the contract or contract performance. Meetings will be monthly or as determined by the COR or KO or at the contractor requests, A separate meeting shall be held whenever a Contract Discrepancy Report (CDR) is issued. The contractor's project coordinator shall produce the meeting minutes timeframes. The minutes shall not be construed as changes to the PWS, but a general statement of topics discussed between the Government and the contractor. The contractor's project coordinator may be required to meet with the COR and/or KO at least annually over entire contract period of performance.

9.0 Reports

9.1 Curriculum Recommendations

The contractor shall submit a report of recommended curriculum content changes for each of the training sessions by the 15th of every month regarding the previous month's data.

9.2 Meeting Minutes

The contractor shall submit written minutes (electronic version) of all meetings with the Government (within five workdays) to the COR and the SWESC GL Project Manager. The meeting minutes shall specifically identify any items that may affect and/or change the contract terms/conditions/PWS requirements and will not implement such changes without express written approval of the KO. The Government will review and advise of any corrections within ten workdays.

9.3 Facilitator Schedule

The contractor shall submit a teaching schedule for the following month by the 20th of every month. The schedule should include each facilitator by name and included the class session they shall be teaching, its location, the date and time.

9.4 Accident Report The contractor shall submit accident reports to the COR within 24 hours of occurrence of the incident.

POINT OF CONTACTS

The following Government points of contact are identified for this contract:

Technical/Project Management: To be determined (TBD) upon award

Invoicing/WAWF: TBD

Contracting:

Name: Ms. Elene Chappelle

Title: Contract Specialist, 221.2

Email: elene.y.chappelle.civ@us.navy.mil

Name: Mr. Kevin Clauson

Title: **Contracting Officer**, 221

Email: kevin.m.clauson.civ@us.navy.mil

The following contractor points of contact are identified for this contract:

Primary POC: TBD

QASP**QUALITY ASSURANCE SURVEILLANCE PLAN****1. Introduction and Purpose**

1. This Quality Assurance Surveillance Plan (QASP) has been developed in conjunction with the Performance Work Statement (PWS) and the Performance Requirements Summary (PRS) for providing an edutainment-based training program regarding sexual assault prevention for incoming sailors. This is a Training Support Center, Great Lakes (TSC-GL) initiative to develop, demonstrate, and assess the effectiveness of individual/combined initiatives to measurably change attitudes and behaviors that lead to the prevention of sexual assaults involving naval service members. This plan sets forth procedures and guidelines that will be used in evaluating the performance of the contractor.

- 1.1 The purpose of the QASP is to ensure that the Government has an effective and systematic method of surveillance for the services in the PWS. The QASP will be used primarily as a tool to verify that the contractor is performing all services required by the PWS in a timely, accurate and complete fashion.
- 1.2 The QASP is the primarily tool used to verify that the contractor has implemented a quality control process, which provides the quality of output the U.S. Navy deems necessary in the performance of the sexual assault prevention training. The contractor is the owner of the quality control process and is responsible for developing, implementing, and modifying procedures that will produce the desired outcomes and result in performance of work within the required standards.
- 1.3 The COR will conduct an initial review of the contractor's quality control process to verify its adequacy. During service performance, the COR will monitor the process for managing performance in a safe, efficient, and quality manner. Levels of surveillance will initially be set to assure the COR that requirements of the PWS are being met and that a process exists and is in place to ensure quality. If, while this surveillance, the COR discovers that the contractor is not complying with the established level of quality, the level of surveillance may be increased. If performance exceeds standards, surveillance may be decreased.

2. Methods of Surveillance

- 2.1 Surveillance methods will vary according to the service or output being monitored. The various methods described may be employed at the discretion of the COR and may be changed without any modification to the contract or notice to the contractor.
- 2.2 The initial levels of surveillance have been determined with consideration given to the importance of the work, the value of the work, the quantity of the work, the location of the work, and the quality assurance staff available. The Government's intent is to minimize the level of the Government involvement and allow the contractor to responsibly perform, or exceed, the contract standards.
- 2.3 The primary methods of surveillance used to monitor performance of this contract will be Government evaluation of the training being provided with COR/TA session observations, periodic inspections, planned or random sampling and validated customer complaints. All will be used as methods to verify facilitator proficiency in presenting course material in an edutainment format that engages both male and female sailors in a positive manner while refraining from strategies that utilize blame or humiliation. Additionally, the facilitators must show that they possess a currency of knowledge around rape and sexual assault prevention with a focus on key concepts regarding the role of social pressures, sex and role stereotypes, and unrealistic fantasies in a student body consisting of young adults with limited life experiences that just joined the military. Finally, the facilitator's skill level will be assessed for the integration of the Navy Core Values of Honor, Courage, and Commitment into every presentation. The overall quality of any required managerial responses and completion timelines for any facilitation or instructional program content issues will be documented especially if

results are deemed unsatisfactory by the Government. Definitions of surveillance methods, as well as other terms, can be found in the Definition of Terms.

2.4 There are three levels of surveillance.

2.4.1 Level I - Reduced: applied in the case of exceptional contractor performance.

2.4.2 Level II - Normal: applied to good but not exceptional contractor performance. This level is to be used when the contract is first implemented.

2.4.3 Level III – Increased: applied in the case of poor contractor performance.

2.5 Customer complaint: A frequently used primary or supportive method of surveillance whereby any customer that observes both positive and negative customer feedback. When a customer complaint identifies unacceptable services (incomplete, improperly performed, or not performed) should immediately contact the COR, who shall record comments in a Customer Complaint Record (Attachment I). The customer complaint shall be considered valid upon receipt from the customer, but will be investigated by the COR. If valid, the COR, with consultation from the contractor, will inform the customer of the approximate time the defect(s) will be corrected and advise the customer to contact the COR if not corrected. The COR will consider customer complaints resolved unless notified otherwise by the customer. If complaints appear to be systematic in nature (the process/procedure rather than isolated unrelated incidents), the COR will advise the Contractor to take corrective action until performance improves and a solution/resolution is reached.

2.6 Contract Discrepancy Reports (CDR) are written to identify documented cases of poor contractor performance. They are issued by the COR and forwarded to the Contracting Officer with a copy sent to the contractor. The contractor must reply in writing within three (3) working days of receipt identifying how future occurrences of the problem will be prevented. The Contracting Officer, based on the contractor's plan to solve the problem and the contractor's past performance, will determine if any further action will be taken.

2.7 Contracting instruments have been increasingly under scrutiny due to fraud and poor quality of service/products. The TA is the first line in ensuring that the Government and the contractor are fulfilling their obligations. The TA is responsible to the COR to provide technical and administrative assistance to the COR. TA's do not have the authority to provide any technical direction or clarification directly to the contractor. The TA will notify the COR immediately of any critical discrepancies and within 1 workday of other discrepancies. The COR is responsible to provide feedback to the contractor.

2.8 The COR is responsible for identifying the problem that caused poor performance. This information must be relayed to the contractor in a timely manner. The contractor shall have a quality control program in place to provide feedback on its performance.

2.8.1 If the contractor's response is likely to correct the problem, the COR should recommend to the Contracting Officer that further government action will not be required apart from an increased level of surveillance. If the contractor's response is not likely to correct the deficiency,

then the COR should explain why the solution is not adequate and recommend action by the Government.

2.8.2 It will be the COR's duty to make quality assurance evaluation (QAE) results known to the Contracting Officer and contractor who is responsible for taking appropriate action. The COR will evaluate the contractor's performance on a regular basis and will maintain an electronic file for historical data.

2.8.3 The COR may observe unsatisfactory performance by the contractor, which is not part of normal surveillance. The contractor shall be informed of the defect, but the observation will not be counted to determine unsatisfactory performance within the QASP. The contractor shall correct the defects as soon as practical. Many these defects shall be cause for action against the contractor.

3. Performance Measurement

3.1 Critical performance processes and requirements. Critical to the performance of Sexual Assault Prevention Training is the timely, accurate and thorough completion of all contract/task order requirements.

3.2 Performance Standards

a. Schedule - The due dates for deliverables and the actual accomplishment of the schedule will be assessed against original due dates and milestones established for the contract or task order(s).

b. Deliverables – The deliverables required to be submitted will be assessed against the specifications for the deliverables detailed in the contract/task order(s) and the Quality Control Plan (QCP), if required by the contract, for the required content, quality, timeliness, and accuracy.

c. Past Performance - In addition to any schedule, deliverables, and cost aspects of performance discussed above, pursuant to FAR 42.15, the Government will assess the contractor's record of conforming to contract requirements and to standards of good workmanship, the contractor's adherence to contract schedules including the administrative aspects of performance, the contractor's history of reasonable and cooperative behavior and commitment to customer satisfaction, and the contractor's business-like concern for the interest of the customer.

3.3 Performance Measurement: Performance will be measured in accordance with the following table:

Performance Element	Performance Requirement	Surveillance Method	Frequency	Acceptable Quality Level
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Contractor Quality Control Plan <i>(If required by the contract)</i>	QC activities, inspections, and corrective actions completed as required by the plan.	Inspection by the COR	Quarterly for overall QC activities; As Required for corrective actions.	100% Compliance with the contractor plan.
Contract Deliverables	Contract deliverables furnished as prescribed in the PWS, attachments, Task Orders, etc., as applicable.	Inspection by the COR	100% inspection of all contract deliverables.	>95% of deliverables submitted timely and without rework required.
Overall Contract Performance	Overall contract performance of sufficient quality to earn a Satisfactory (or higher) rating in the COR's annual report on Contractor Performance	Assessment by the COR	Annual	All performance elements rated Satisfactory (or higher)
Invoicing	Monthly invoices per contract procedures are timely and accurate.	Review & acceptance of the invoice	Monthly	100% accuracy

PWS EVALUATION

REF	Performance Requirement	Performance Standard	Performance Measurement
3.3	Government property inventory	All government property inventoried and returned upon completion of contract or when becomes obsolete or no longer serviceable.	100% property accounted for and returned in the same condition minus normal wear and tear.
3.4	Government computer systems	Only authorized government software and hardware will be used on the NMCI systems and only authorized users will use the systems	100% Compliant
4.0	Contractor furnishes equipment	Contractor shall provide all needed admin supplies and other needed equipment to perform the contract that is not listed specifically in section 2 along with all duplication services	100% Compliant
Para 5.1 5.2 5.4	Use of an interactive and improvisational sexual assault training program that is integrated with Navy Core Values for each presentation	All materials ready for presentation at start of contract performance for each initial training session	Provides acceptable written sample of training material that fully incorporates Navy Core Values at kick-off meeting and final version before contract performance begins.

5.5 5.13	Contractor Project Coordinator	Point of Contact for all contract related issues and available for meetings and responds to correspondence in a timely manner.	Must be available for meeting within 5 working days and respond to correspondence within 3 working days 95% of the time during each reporting period.
5.6	Monthly Reports	Provides monthly written reports of training session activities, assessment results and analysis, recommended curriculum changes, and other pertinent information/issues related to contractor performance.	100% compliant for submissions and in accordance with required timeframes.
5.7 5.11 5.14 7.1	Conducts quarterly staff/leadership workshops	Staff/Leadership workshop are provided each quarter as scheduled and are conducted for a maximum of 4 hours.	Adheres to Government approved topics at least for 98% of the time. 100% of courses to start within 5 minutes of approved start time and finishes within maximum 4-hour timeframe.
5.8 5.11 5.14 7.1	Performs weekly, two-person, large group sessions	Sessions must start on time and follow the government approved curriculum guidelines. Sessions must run 60-90 minutes in length.	Adheres to Government approved curriculum at least for 90% of the performance and pursue active student participation. 100% of courses to start within 5 minutes of approved start time. 100% of course must run between 60 minutes and no longer than 90 minutes in length.
5.9 5.11 5.14 7.1	Performs weekly (2 different days), one-two person, small group sessions estimated at a minimum of two to a maximum of six sessions each week running concurrently on the days they are taught IAW Government scheduling requirements	Courses must start on time and follow the government approved guidelines. Courses are to be 60 to 90 minutes in length.	Adheres to Government approved curriculum at least for 90% of the performance and pursue active student participation. 100% of courses to start within 5 minutes of approved start time. 100% of courses are to run between 55 and 95 minutes in length.
6.6 6.8 6.10	Compliance with Government rules/regulations for personnel integrity, grooming, conduct, speech, student fraternization, safety, security, parking, badges/passes, and key control	No instances of violations. All required training completed.	100% Compliant
6.7	All contractor personnel who work on-site must have always display their CAC card.	All contractor personnel must have a CAC card to access the installation. Installation access request will be processed for personnel via RapidGate through the Contractors active account.	100% Compliant
6.11	Classes are to be maintained in an orderly and professional atmosphere.	Students whose conduct is not conducive shall be referred to military POC. All allegations of misconduct by the contractor shall be investigated and corrective action implemented.	100% Compliant

7.0	Contractor Qualifications	Facilitating assigned sessions using experienced instructors meeting standards of the contractor's QCP	100% Compliant
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DELIVERABLES SCHEDULE

<u>General</u>	<u>Frequency</u>	<u>Medium/Format</u>	<u>Submit To</u>
Invoices	Monthly	WAWF	COR
Central Contractor Registry	Upon award and annually	On-Line Web Site	On-Line
Contractor Security Representative	Within 3 days upon award and upon changes	In Writing or Electronic PDF	COR for forwarding to Contracting Officer & Command Security Mgr.
Non-Sensitive Position Investigations	30 days prior to employee's start date	Electronic/Fingerprints on form	Command Security Manager
IT System Access	30 days prior to employee's start date if they are to have access	Use of Form SAAR-N	Command Security Manager and then IT Manager
Sample of training material/schedule	Kick-Off Meeting and upon any revisions	In Writing or Electronic PDF	TSCGL Leadership and COR
Contractor's Project Manager and Alternate	Within 24 hours of award and within 1 day of any changes	In Writing or Electronic PDF	COR
Contract Personnel Roster	Within 5 days of start of performance, upon any changes and within 24 hours of any terminations/resignations/reassignments or completion of contract	In Writing or Electronic PDF	COR
Safety and Accident Reports- See 9.5	Immediate w/follow-up on A005	Verbal	Verbal – TA/COR Writing - COR
Employee Disciplinary Problems	Within 3 workdays of notification	In Writing or Electronic	COR
Meeting Minutes – See 9.3	Within 3 workdays	Electronic	COR/TSCGL Project Mgr.
Contractor Quality Control Plan	Within 30 days of contract award date	In Writing or Electronic	COR
Training Reports	15 th of every month for prior month's reporting	In Writing or Electronic	COR
Curriculum Recommendations	15 th of every month for prior month's reporting	In Writing or Electronic	COR
Meeting Minutes	Within 3 workdays of meeting	Electronic	COR and TSC GL Project Manager
Facilitator Schedule	25 th of each month	Electronic	COR
Accident Reports L	Within 24 hours of occurrence	Verbal Electronic	COR
Inventory Report	Within 30 days of start of contract and 30 th of October	Electronic	COR
Contract Manpower Report Application	No later than 31 October	On-Line Web Site	On-Line

If performance is within acceptable levels, it will be satisfactory. If not, overall performance may be considered unsatisfactory.

3.4 Incentives/Disincentives:

The COR's makes an annual report on Contractor Performance (CPARS or other annual report). The contractor's failure to achieve satisfactory performance under the contract/task order, reflected in the COR's annual report, may result in termination of the contract/task order and may also result in the loss of future Government contracts/task orders. The contractor's failure to achieve satisfactory performance under the contract/task order may result in the non-exercise of available options

In accordance with the inspection of services provisions of the contract, the contractor will be incentivized to provide quality products in a timely manner since the Government can require the Contractor, at no additional cost, to replace or correct work that fails to meet contract requirements.

4. Audits

4.1 Surveillance will be conducted utilizing the applicable TSC Audit Record to conduct and document the contractor's performance. All completed forms, with no discrepancy marks, will be submitted electronically to the COR office before the 5th day of the month after the audit month. Forms may be submitted either typed or handwritten with the comments typed up on a separate paper and signed. All comments will be submitted in a manner that can be cut and paste into a word document. Audit forms containing discrepancy remarks will be submitted to the COR within one business day.

4.2 The following guidelines will be used when completing the audit forms:

Audit Information

QAR/COR/TA – The auditor will enter their position and first and last name. Military will also include their rank. *Exp: FCI(SW) John Smith, TA*

Audit Date – utilize drop down menu

Risk Rating – utilize drop down menu and enter the risk rating as established in the QASP.

Location – enter the building and room number

Contractor POC is the primary contractor you audited/observed

Corrective Measures Required – Answer yes if the contractor had any justified unsatisfactory rating.

Contract Discrepancy Report – Only answer yes after seeking COR guidance.

Type of Audit – utilize drop down menu

Audit Summary and Comments – Comments will be made for all above and below standards observations. Comments must be brief, concise, quantified and meaningful. *Exp: Contractor Presenter arrived fifteen minutes late to the presentation start time of 1500.* Never use the terms “I think” or “I feel”. If the contractor failed to meet contract requirement, explain why if known, especially if it was due to government interference/failure. *Exp: The contractor was not able to start the session on-time due to the Government provided sound system was not available.*

Performance Measures

When conducting an audit, not all sections of the audit form may be part of your audit. You only need to answer all the questions for the section(s) that you are conducting the audit on. The rest of the sections should be left blank.

Characteristics - Read the question. Each question is worded that a “Yes” answer indicates that the contractor met contract requirements.

Response – utilize the drop-down menu.

Yes – Requirement performed satisfactorily

No – Requirement was not performed satisfactorily

N/O – Not Observed, use if you did not observe the question

N/A – Not Applicable, only use if it is Not Applicable for your audit

Comments – Comments are mandatory for all above standard and below standard performance evaluations. These comments follow the same rules as the “Audit and Summary” block.

Additional Notes – Used to document your observation notes for inclusion into the official record. Notes may or may not be directly related to your audit or the contractor’s performance. *Exp: The student class arrived 15 minutes late.*

Risk Rating Chart

The Risk Rationale Chart shown below shall be used to assess the consequence and likelihood of non-conformance to Sexual Assault Prevention Training SOW requirements. The risk rationale consequence and likelihood narratives address specific customer outcomes in this contract.

Rating Rationale Likelihood

5 – There is a high probability nonconformity will occur that could adversely affected customer services if current conditions are not addressed immediately.

4 – Government/Contractor performance data reflects non-conforming trends exist which cast doubts on the ability of the process service controls to consistently meet SOW/PWS requirements.

3 – It is unlikely that customer services will be interrupted; however, contractor performance data is unavailable or inconclusive to reliably predict future outcomes.

2 – Government/Contractor performance data reflects process controls are assessed frequently, and services will continue to meet SOW/PWS requirements.

1 – There is little or no possibility that an undetected nonconformance would escape contractor process controls and their providing consistent services that meet SOW/PWS requirements.

Rating Rationale Consequences

5- Failure would result in loss of life or serious injury to the user or impact on mission readiness.

4- Failure would adversely affect services necessary to maintain mission readiness.

3- Failure would impact reliability and maintainability of the service and result in possible partial mission capability.

2- Failure would not adversely affect mission readiness immediately, but periodic surveillance should be established to ensure service interruptions are addressed in a timely manner.

1 – Failure to control this process would have little or no adverse effect on mission readiness.

Likelihood	5	M	M	H	H	H
	4	L	M	M	H	H
	3	L	L	M	M	H
	2	L	L	L	M	M
	1	L	L	L	M	M
		1	2	3	4	5
Consequence						

CONSEQUENCE RATINGS		CONSEQUENCE
Clauses	General Requirements	Medium

3.0	Government Provided Items/Equipment/Facilities/Services	Low
4.0	Contractor Furnished Equipment/Property/Facilities/Services	Low
5.0	Performance Requirements	Low
6.0	Performance Details	Low
7.0	Knowledge and Expertise – Contractor Qualifications	Low
8.0	Quality	Low
KTR QCP	Contractor Quality Control Plan	Medium

INSPECTION SCHEDULE

PLANNED INSPECTION SCHEDULE												
	JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEP	OCT	NOV	DEC
Clauses									C			
3										C		
4							C					
5 generals		O	O	O		O	O		O	O	O	
5 large					T			C		T		
5 small				T			C				T	
5 leadership			T									C *
6*					T		C	C			T	
7									C			
8										C		

C = COR T = TA O= Optional for COR to complete * Sup and Non-Sup-Move C to Dec

The Lead TA will assign which TA is responsible to conduct the planned inspections.

Planned audits scheduled to be conducted by the TA can be done by either the TA or the COR. Planned audits scheduled to be conducted by the COR shall only be done by the COR/ACOR. All audits can be done jointly.

100% of all audit sections will be covered over the course of each period of performance.

* Section 6 audits should be done in conjunction with Section 5 audits for one of each type of session per the schedule.

Section 5 general requirements are to be done optionally as the auditable event occurs, but not less than once per POP.

Customer Complaints: The applicable audit record(s) and sections 7 and 8 done upon the receipt of a customer complaint at the discretion of the COR.

5. TA Evaluation

5.1 Although a TA(s) maybe assigned to assist the COR in executing routine administration and monitoring duties, a TA's appointment does not remove the COR from their responsibilities. The COR remains technically responsible for the contractor's performance monitoring and is required to ensure that proper monitoring is being conducted by the TA and that the information received from the TA is accurate and complete.

5.2 The COR will conduct a monthly review of the TA's performance, complete the TA feedback report and submit the report to the TA's chain of command. All contract significant negative issues shall be immediately addressed.

6. Release and destruction

6.1 The QASP and audit forms, either in full or part of, completed or blank, are for **OFFICIAL USE ONLY** and is not authorized to be released in any manner without the written consent of the contract's Contracting Officer, Contract Specialist, Contracting Officer's Representative or Alternate Contracting Officer's Representative. All copies of the form will be properly safeguarded to avoid unauthorized release. All copies being disposed of will be done by crisscross shredding or other manner which makes their recreation extremely difficult.

Customer Complaint Form

Contract Number:	
First Informed of Complaint: Date/Time:	
Received By:	
Source of Complaint: Organization: Individual: Phone:	
Details of Complaint:	
Contract Reference (work requirement):	
Complaint Validated: Date/Time: By:	
KTR Informed of Complaint: Date/Time: By:	
Action Planned/Taken By KTR:	
Work Inspected/Re-Inspected (if applicable): Date/Time: By:	
Results of Inspection (Satisfactory, Unsatisfactory, Further Action Required):	
Signature of TA: Print Name:	Date:
Signature of COR: Print Name:	Date:

CONTRACT AWARD SUBMITTAL RECORD CHECKLIST

Item	PWS Ref.	Due Date	SAT	UNSAT
The contractor shall designate an employee to serve as the Contractor's Security Representative and provide to Command's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the Security Rep.	5252.204-9400	Within three workdays after contract award		
Non-Sensitive Position Investigations	5252.204-9400	As required, at least 30 days prior to individual's start date		
Kick-Off meeting to review requirements, begin coordination, discussion, and scheduling of sessions in addition to providing training material/objectives with an explanation of how Navy Core Values will be incorporated.	5.2 5.3	Performed after contract award and during contract turnover period prior to actual performance		
Designation of Contractor's Project Primary and Alternate Manager	5.5	5 workdays after contract award for initial submittal		
Monthly Training Report and Curriculum Recommendations Report	5.6 and 9.1, 9.2	After first full month of group sessions		
Contractor personnel completion of Government required training	6.6	Upon start of contract		
Contract Personnel Roster	6.7	5 workdays prior to start of contract performance		
Safety and Accident Reports	6.9, A005	Per occurrence		
Written Meeting Minutes provided by the Contractor	6.13 9.3	3 workdays after meeting in electronic format		
Contractor Quality Control Plan	8.1	30 workdays after award		
Performance Evaluation Meetings	8.4	Twice during first month of performance		
Facilitator Schedule	9.4	25 th of the month for following month's sessions		
Inventory Report	9.6	Within 30 days of start of contract		

Comments on unsatisfactory items listed above.

Items received by (COR): _____ Date: _____

DEFINITION OF TERMS

Customer complaint/survey: A frequently used primary or supportive method of surveillance whereby any customer that observes unacceptable services (incomplete, improperly performed, or not performed) should immediately contact the COR, who shall record comments in a Customer Complaint Record.

Defect: Maintenance or services not in accordance with the PWS.

Quality Assurance Inventory of Monitoring Requirements: A document used to develop the QA Plan. The document summarizes each requirement in the contract and specifies performance standards.

Performance Work Statement (PWS): A type of contracting specification that states output requirements and leaves the methods of work accomplishment to the Contractor. A PWS places work management responsibility on the Contractor.

Planned Sampling: A method of inspection where only a portion of the work performed is observed. Unlike random sampling (where the population and the use of statistical tables determine the sample size), the sample size is determined arbitrarily and is very subjective. A percentage of the work may be inspected, or certain work occurrences may be evaluated. Whatever method of selection criteria is used, it is recommended that at least 10% of the total work requirement be inspected.

Random Sampling: This is usually the most appropriate method for recurring tasks. With random sampling, services are sampled to determine if the level of performance is acceptable. Random sampling works best when the number of instances of the services being performed is very large and a statistically valid sample can be obtained.

Acceptable Quality Level (AQL). The maximum percent defective, the maximum number of defects per hundred units, or the number of defects in a lot that is considered satisfactory on the average that is the allowable leeway or variance from a standard before the Government will reject the specific service. An AQL does not allow the service provider to knowingly offer defective service but admits that defective performance may sometimes be unintentional. If the percent of defective performance does not exceed the AQL, the Government will not reject the service. However, the service provider must correct the deficiencies, as required, at no additional cost to the Government.

CAP FFP

CONTRACT ADMINISTRATION PLAN (CAP) FOR FIXED PRICE, INDEFINITE DELIVERY, CONTRACTS

In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award

document. The office or individual designated as having responsibility should be contacted for any questions, clarifications or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:
 - a. All pre-award duties such as solicitation, negotiation and award of contracts.
 - b. Any information or questions during the pre-award stage of the procurement.
 - c. Freedom of Information inquiries.
 - d. Changes in contract terms and/or conditions.
 - e. Post award conference.
2. The Contract Administration Office (CAO) is responsible for matters specified in FAR 42.302, except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.
3. The paying office is responsible for making payment of proper invoices after acceptance is documented.
4. The Ordering Officer is responsible for:
 - a. Requesting, obtaining and evaluating proposals for orders to be issued.
 - b. Select the most advantageous offer to the Government for individual Task Orders in accordance with contract provisions. Determining that the price/estimated cost of the order is fair and reasonable for the effort proposed.
 - c. Obligating the funds by issuance of the delivery order/task order.
 - d. Authorizing the contractor to begin performance.
 - e. Providing subcontract approval.
 - f. Monitoring direct costs on orders issued.

NOTE: The PCO and the Ordering Officer may be the same individual, but in no case shall the COR perform the duties of the Ordering Officer.

5. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

- (1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or any other interface of a technical nature necessary for the contractor to perform the work specified in the contract or order. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.
- (2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions

contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

- (1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.
- (2) The COR shall monitor the contractor's performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.
- (3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.
- (4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract, you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect an evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

- (1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available, and any information developed from personal observations.
- (2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor.
- (3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.
- (4) Upon completion of all services under the contract, the COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

d. Contract Modifications/Orders Under Indefinite Delivery Contracts.

- (1) The COR is responsible (if necessary) for developing the statement of work for tasking orders, change orders, or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

- (2) The COR shall provide available and relevant Past Performance information with each request for new Task Orders. The COR shall review and evaluate the contractor's proposal and furnish comments and recommendations

e. Administrative Duties

- (1) The COR is responsible for taking appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.
- (2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.
- (3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

- f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to ensure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.
- g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.
- h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

- (1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractor's performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor. For contracts where delivery orders are issued, one consolidated report which addresses all actions under the contract may be submitted.
 - (2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract, you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.
 - (3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.
1. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:
 - a. Identify contractor deficiencies to the COR.
 - b. Review contract/delivery order deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.
 - c. Assist in preparing the final report on contractor performance for the applicable contract/delivery order in accordance with the format and procedures prescribed by the COR.
 - d. Identify contract noncompliance with reporting requirements to the COR.
 - e. Evaluate the contractor's proposals for specific delivery orders and identify, for the COR, any potential problems, areas of concern, or issues to be discussed during negotiations.

- f. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.
- g. Review invoices for the appropriate mix of types and quantities of labor, materials, and other direct costs, and provide the COR with recommendations to facilitate COR certification of the invoice.
- h. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.
- i. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

DURATION OF CONTRACT PERIOD

Period Ordering	Period Begins	Ordering Period Ends
Base Ordering Period	01 July 2026	30 June 2031
Option I	01 July 2031	31 January 2032

(a) This contract shall become effective on 1 July 2026 or date of award, whichever is later, and the ordering period shall continue in effect during the period ending 60 months (66 months if option is exercised) after date of contract unless terminated in accordance with other provisions herein. Performance under task orders issued under this contract may begin on the last day of the ordering period and continue for one year after the last day to place an order.

MIN AND MAX QTY

MINIMUM AND MAXIMUM QUANTITIES (FFP, SINGLE AWARD IDIQ)

As referred to in paragraph (b) of the "Indefinite Quantity" clause of this contract, the total contract minimum quantity is a total of \$10,000.00 worth of orders at the contract unit price(s). The contract maximum quantity is a total of the total combined value of all contract line items.

ORDERING

(a) Ordering: Supplies or services to be furnished under this contract shall be furnished at such times as ordered by the issuance of delivery/task orders on DD Form 1155 or SF 1449 by the NAVSUP Fleet Logistics Center Norfolk, Pentagon Directorate. All orders issued hereunder are subject to the terms and conditions of this contract. This contract shall control in the event of conflict with any order. When mailed, a delivery/task order shall be "issued" for purpose of this contract at the time the Government deposits the order in the mail, or, if transmitted by other means, when physically delivered to the contractor.

(b) Ordering Procedures:

(1) Delivery/task orders issued shall include, but not be limited to the following information:

- (a) date of order
- (b) contract and order number
- (c) appropriation and accounting data
- (d) item number and description of the services to be performed, quantity, and unit price or estimated cost or fee.
- (e) description of end item(s) to be delivered
- (f) packaging, packing, and shipping instructions, if any.
- (g) DD Form 254 (Contract Security Classification Spec), if applicable

- (h) DD Form 1423 (Contract Data Requirements List), if data to be delivered under the order is not listed on the DD Form 1423 included in this contract.
- (i) exact place of pickup and delivery
- (j) the inspecting and accepting codes (as applicable)
- (k) period of time in which the services are to be performed
- (l) for Cost plus Fixed Fee (CPFF) and Time & Materials/Labor Hour (T&M/LH) orders, each applicable labor category, estimated number of labor hours estimated to be required to perform the order.
- (m) the estimated cost plus fixed fee or ceiling price for the order, or, in the case of a Firm Fixed Price (FFP) order, the price of the order
- (n) list of Government furnished material and the estimated value thereof, if applicable.
- (o) method of payment and payment office, if not specified in the contract (see 32.1110(e)).
- (p) any other pertinent information.

(2) Oral orders may be placed hereunder only in emergency circumstances. Information described above shall be furnished to the contractor at the time of placing an oral order and shall be confirmed by issuance of a written delivery/task order on DD Form 1449 within ten (10) working days.

(3) Modifications of delivery/task orders: Delivery/task orders may be modified by the Ordering Officer. Modifications to delivery/task orders shall include the information set forth in paragraph above, as applicable.

(4) Delivery/task orders may be modified orally by the Ordering Officers in emergency circumstances. Oral modifications shall be confirmed by issuance of a written modification within two working days from the time of the oral communication modifying the order.

(5)

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:

- a. All pre-award information, questions, or data;
- b. Freedom of Information inquiries;
- c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
- d. Arranging the post award conference (See FAR 42.503).

Warranted Contracting Officer

NAVSUP Fleet Logistics Center Norfolk, Pentagon Directorate

Address: NSA Philadelphia, 700 Robbins Ave., Bldg. 2B, Philadelphia, PA 19111 Phone: (564) 230-2181

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Name: **NAVSUP Fleet Logistics Center Norfolk, Pentagon Directorate, Contracting Office**

3. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

Name: **[To be determined]**

Address: _____

Phone: _____

4. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:
- Liaison with personnel at the Government installation and the contractor personnel on site;
 - Technical advice/recommendations/clarification on the statement of work;
 - The statement of work for delivery/task orders placed under this contract.
 - An independent government estimate of the effort described in the definitized statement of work;
 - Quality assurance of services performed and acceptance of the services or deliverables;
 - Government furnished property;
 - Security requirements on Government installation;
 - Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/or
 - Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

COR Name: **[To be determined]**

Address: _____

Phone: _____

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

ACOR Name: **[To be determined]**

Address: _____

Phone: _____

5. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:
- Identifying contractor deficiencies to the COR;
 - Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
 - Identifying contractor noncompliance of reporting requirements;
 - Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
 - Reviewing contractor reports providing recommendations for acceptance/rejection;
 - Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
 - Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
 - Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Name: **[To be identified on individual task orders as required.]**

Address: _____

Phone: _____

7. ORDERING OFFICER is responsible for:
- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
 - b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
 - c. Obligating the funds by issuance of the delivery/task order;
 - d. Authorization for use of overtime;
 - e. Authorization to begin performance; and/or
 - f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- a. Type of order issued is limited by this contract to FFP pricing arrangements;
- b. No order shall be placed in excess of \$2 million without the prior approval of the PCO; and/or
- c. No order shall be placed with delivery requirements in excess of \$2M in a 30-day period.

Ordering Office Name and Address

Name: **TBD**

(End of text)

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	SAPT Follow-On FFP Base Period - Large Group Sessions performed in accordance with (IAW) the Performance Work Statement (PWS). Single weekly, interactive, improvisational, 60- to 90-minute, two-person facilitated session that directly target audiences of up to a maximum of 300 Navy students who recently joined the service. Scenarios shall be used to explore social norms, myths, and gender stereotypes. Presentations shall use a discussion-based format incorporating humor, key components of bystander intervention education, and an explicit moral argument against sexual violence. FOB: Destination MILSTRIP: N1OPNAV20250308 PURCHASE REQUEST NUMBER: N1OPNAV20250308 PSC CD: U009	250	Sessions		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Small-Group Student Sessions - Base FFP Base Period - Small Group Training Sessions in accordance with (IAW) the Performance Work Statement (PWS). Coordinated program of 60 to 90 minute, small-group discussion sessions that serve as an in-depth follow-up to the largegroup presentation. FOB: Destination PURCHASE REQUEST NUMBER: N1OPNAV20250308 PSC CD: U009	1,500	Sessions		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003	Staff/Leadership Workshops - Base FFP Base Period - Staff. Leadership workshops performed in accordance with (IAW) the Performance Work Statement (PWS). Half day (four hour maximum) workshop for staff/leadership on a quarterly basis totaling four workshops in a calendar year. Content shall include presentations by subject matter experts. Topics may cover reinforcement of core concepts on the roles and responsibilities of a bystander, direct challenges of the notions of victim blaming and any other perpetuations of rape mythology, review of specific tools for leaders and staff in these areas of discussion, and demonstrations (in whole or in part) of large-group and small-group sessions. FOB: Destination PURCHASE REQUEST NUMBER: N1OPNAV20250308 PSC CD: U009	20	Sessions		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001		25	Sessions		
OPTION	Large Group Sessions - Opt I FFP Option I - Large Group Sessions performed in accordance with (IAW) the Performance Work Statement (PWS). Single weekly, interactive, Improvisational, 60- to 90-minute, two-person facilitated session that directly target audiences of up to a maximum of 300 Navy students who recently joined the service. Scenarios shall be used to explore social norms, myths, and gender stereotypes. Presentations shall use a discussion-based format incorporating humor, key components of bystander intervention education, and an explicit moral argument against sexual violence. FOB: Destination PURCHASE REQUEST NUMBER: N1OPNAV20250308 PSC CD: U009				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1002		150	Sessions		
OPTION	Small-Group Student Sessions - Opt I FFP Option I - Small Group Training Sessions in accordance with (IAW) the Performance Work Statement (PWS). Coordinated program of 60 to 90 minute, small-group discussion sessions that serve as an in-depth follow-up to the largegroup presentation. FOB: Destination PURCHASE REQUEST NUMBER: N1OPNAV20250308 PSC CD: U009				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1003		2	Sessions		
OPTION	Staff/Leadership Workshops - Opt I FFP Option I - Staff. Leadership workshops performed in accordance with (IAW) the Performance Work Statement (PWS). Half day (four hour maximum) workshop for staff/leadership on a quarterly basis totaling four workshops in a calendar year. Content shall include presentations by subject matter experts. Topics may cover reinforcement of core concepts on the roles and responsibilities of a bystander, direct challenges of the notions of victim blaming and any other perpetuations of rape mythology, review of specific tools for leaders and staff in these areas of discussion, and demonstrations (in whole or in part) of large-group and small-group sessions. FOB: Destination PURCHASE REQUEST NUMBER: N1OPNAV20250308 PSC CD: U009				

 NET AMT

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government
0002	Destination	Government	Destination	Government
0003	Destination	Government	Destination	Government
1001	Destination	Government	Destination	Government
1002	Destination	Government	Destination	Government
1003	Destination	Government	Destination	Government

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
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0001	POP 01-JUL-2026 TO 30-JUN-2031	N/A	SURFACE WARFARE OFFICER SCHOOL COMMAND GEMMA POWELL 2331 ISHERWOOD AVE BLDG 236 GREAT LAKES IL 60088 (847) 688-4862 #123 FOB: Destination	N63190
0002	POP 01-JUL-2026 TO 30-JUN-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N63190
0003	POP 01-JUL-2026 TO 30-JUN-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N63190
1001	POP 01-JUL-2031 TO 31-JAN-2032	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N63190
1002	POP 01-JUL-2031 TO 31-JAN-2032	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N63190
1003	POP 01-JUL-2031 TO 31-JAN-2032	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N63190

CLAUSES INCORPORATED BY REFERENCE

52.203-3	Gratuities	APR 1984
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.204-7	System for Award Management	NOV 2024
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-29	Federal Acquisition Supply Chain Security Act Orders--Representation and Disclosures.	DEC 2023
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.212-1	Instructions to Offerors--Commercial Products and Commercial Services	SEP 2023
52.212-4	Contract Terms and Conditions--Commercial Products and Commercial Services	NOV 2023
52.217-5	Evaluation Of Options	JUL 1990
52.224-1	Privacy Act Notification	APR 1984
52.224-2	Privacy Act	APR 1984
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.237-1	Site Visit	APR 1984
52.237-2	Protection Of Government Buildings, Equipment, And Vegetation	APR 1984
52.242-13	Bankruptcy	JUL 1995

252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023
252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023
252.204-7012 (Dev)	Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2024-O0013 REVISION 1)	MAY 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	JAN 2023
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	JAN 2023
252.204-7022	Expediting Contract Closeout	MAY 2021
252.204-7023 Alt I	Reporting Requirements for Contracted Services (JUL 2021) Alternate I	JUL 2021
252.204-7024	Notice on the Use of the Supplier Performance Risk System	MAR 2023
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.225-7048	Export-Controlled Items	JUN 2013
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	MAY 2024
252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY 2022
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime	JAN 2023
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region - Representation	JUN 2023
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region	JUN 2023
252.225-7972 (Dev)	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-O0014)	AUG 2024
252.225-7973 (Dev)	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems - Representation (DEVIATION 2024-O0014)	AUG 2024
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7010	Levies on Contract Payments	DEC 2006
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel	JAN 2023
252.243-7002	Requests for Equitable Adjustment	DEC 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services	NOV 2023
252.247-7023	Transportation of Supplies by Sea	OCT 2024

CLAUSES INCORPORATED BY FULL TEXT

52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021)

(a) Definitions. As used in this clause--

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [☐] will, [☐] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [☐] does, [☐] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror () has () does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.212-2 EVALUATION--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible quoter whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

(1) Quotes will be evaluated in accordance with the instructions set forth in 52.212-1 Addendum as well as the evaluation criteria contained in this section. The Government intends to award a contract resulting from this solicitation to the responsible quoter whose quote represents the best value after evaluation in accordance with the factors (and subfactors, if any) in the solicitation. The quoter's responses to the 52.212-1 Addendum of the solicitation will form the basis of the evaluation of quotes as follows: The evaluation of quotes will consider the quoter's non-price quote more important than the quoter's price quote.

(2) The non-price evaluation factors are listed below with Performance Approach and Past Performance being of equal importance:

Performance Approach
Past Performance

In considering the relevance of an quoter's past performance, the past performance references provided by the quoter will be evaluated individually and in the aggregate. If subcontractor past performance is provided as part of the two (2) of its most relevant contracts or efforts, the subcontractor past performance will be given weight proportional to the scope and magnitude of the aspects of the work under the solicitation for which the subcontractor is proposed. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources including sources outside of the Government. When a quoter is determined to have relevant past performance, the quality of its relevant past performance will be evaluated. Quoters lacking relevant past performance history will not be evaluated favorably or unfavorably under the Past Performance factor. However, the quote of an quoter with no relevant past performance history, while not rated favorably or unfavorably for past performance, may not represent the most advantageous quote to the Government and, thus, may be an unsuccessful quote when compared to the quotes of other quoters. The evaluation of Past Performance is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the quoter's past performance will be used as a means of evaluating how capable the quoter is of successfully accomplishing the requirements of the solicitation. In determining the rating for the Past Performance evaluation factor, the Government will give greater weight to the contracts or efforts which are determined to have greater relevance to the solicitation. A quoter whose past performance demonstrates either a low expectation or no expectation that the quoter will be able to successfully perform the required effort will be considered ineligible for award.

For all non-price factors (other than Past Performance), an quoter's quote must be determined to be Acceptable or better in order to be eligible for award. A rating that is less than "Acceptable" in any non-price evaluation factor and/or less than a "Satisfactory Confidence" rating in the Past Performance evaluation factor will render a quote ineligible for award consideration as submitted.

The Government reserves the right to award the contract to other than the quoter with the lowest evaluated price. The evaluated price will be the quoter's total proposed price. The total proposed price is determined by adding together the proposed prices for all CLINs for the base period and all option periods.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful quoter within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION 2025-O0003/ DEVIATION 2025-O0004) (OCT 2025) ALTERNATE I (MAR 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) Definitions. As used in this provision --

"Covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

"Economically disadvantaged women-owned small business (EDWOSB) concern" means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

"Forced or indentured child labor" means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

"Highest-level owner" means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

"Immediate owner" means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

"Inverted domestic corporation" means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

"Manufactured end product" means any end product in product and service codes (PSCs) 1000-9999, except--

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

"Place of manufacture" means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

"Predecessor" means an entity that is replaced by a successor and includes any predecessors of the predecessor.

"Reasonable inquiry" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

"Restricted business operations" means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate--

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

"Sensitive technology"--

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically--

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

"Service-disabled veteran-owned small business (SDVOSB) concern" means a small business concern—

- (1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

"Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program" means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

"Service-disabled veteran-owned small business (SDVOSB) Program" means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

"Small business concern"--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

"Small disadvantaged business concern, consistent with 13 CFR 124.1001", means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

"Subsidiary" means an entity in which more than 50 percent of the entity is owned--

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

"Successor" means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

"Veteran-owned small business concern" means a small business concern--

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

"Women-owned business concern" means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

"Women-owned small business concern" means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

"Women-owned small business (WOSB) concern eligible under the WOSB Program" (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications--Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer. Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that--

(i) It [____] is, [____] is not a small business concern; or

(ii) It [____] is, [____] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____]

(2) Veteran-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents as part of its offer that it [____] is, [____] is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it [____] is, [____] is not an SDVOSB concern.

(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it [____] is, [____] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Small disadvantaged business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it [____] is, [____] is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) Women-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it [____] is, [____] is not a women-owned small business concern.

(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) Women-owned business concern (other than small business concern). (Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it (____) is, a women-owned business concern.

(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [____] is, [____] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and

will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [____] is, [____] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

____ Black American.

____ Hispanic American.

____ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

____ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

____ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

____ Individual/concern, other than one of the preceding.

(d) [Reserved]

(e) Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American --Supplies, is included in this solicitation.)

(1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
—	—	—
—	—	—
—	—	—

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No.
—
—
—

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) Buy American--Free Trade Agreements--Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of origin
—	—
—	—
—	—

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
—	—	—
—	—	—
—	—	—

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No.
—
—
—

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of origin
---------------	-------------------

___	___
___	___
___	___

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals--

(1) [___] Are, [___] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [___] Have, [___] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [___] Are, [___] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [___] Have, [___] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed end product	Listed countries of origin
_____	_____
_____	_____
_____	_____

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

[____] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

[____] (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) (____) In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) (____) Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards. (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.)

[The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

[☐] (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror (☐) does (☐) does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

[☐] (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror (☐) does (☐) does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

(☐) TIN: -----.

(☐) TIN has been applied for.

(☐) TIN is not required because:

(☐) Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

(☐) Offeror is an agency or instrumentality of a foreign government;

(☐) Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

(☐) Sole proprietorship;

(☐) Partnership;

(☐) Corporate entity (not tax-exempt);

(☐) Corporate entity (tax-exempt);

(☐) Government entity (Federal, State, or local);

(☐) Foreign government;

(☐) International organization per 26 CFR 1.6049-4;

(☐) Other -----.

(5) Common parent.

(☐) Offeror is not owned or controlled by a common parent;

(☐) Name and TIN of common parent:

Name - ____ .

TIN - ____ .

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations—

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that--

(i) It is not an inverted domestic corporation; and

(ii) It is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation.

(1) The Offeror represents that it [____] has or [____] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates “has” in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____

Immediate owner legal name: ____

(Do not use a “doing business as” name)

Is the immediate owner owned or controlled by another entity:

[____] Yes or [____] No.

(3) If the Offeror indicates “yes” in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest level owner CAGE code: ____

Highest level owner legal name: ____

(Do not use a “doing business as” name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that--

(i) It is [____] is not [____] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is [____] is not [____] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it [____] is or [____] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____ .

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services--Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that--

(i) It [____] does, [____] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it [____] does, [____] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

x (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

___ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

___ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

x (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (6) [Reserved]

___ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders--Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

___ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

___ (ii) Alternate I (DEC 2023) of 52.204-30.

x (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

x (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

___ (14) [Reserved]

___ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

___ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

___ (17) [Reserved]

x (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

___ (ii) Alternate I (MAR 2020) of 52.219-6.

___ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

___ (ii) Alternate I (MAR 2020) of 52.219-7.

x (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

___ (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

___ (ii) Alternate I (NOV 2016) of 52.219-9.

___ (iii) Alternate II (NOV 2016) of 52.219-9.

___ (iv) Alternate III (JUN 2020) of 52.219-9.

___ (v) Alternate IV (JAN 2025) of 52.219-9.

___ (22) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

___ (ii) Alternate I (MAR 2020) of 52.219-13.

___ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

___ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

____ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

x (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

____ (ii) Alternate I (MAR 2020) of 52.219-28.

____ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

____ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

____ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

____ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

x (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

____ (32) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

____ (33) [Reserved]

____ (34) [Reserved]

x (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

____ (ii) Alternate I (JUL 2014) of 52.222-35.

x (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

____ (ii) Alternate I (JUL 2014) of 52.222-36.

x (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

x (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

x (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

x (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

____ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 76711).

x (47) (i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

____ (48) (i) 52.225-1, Buy American--Supplies (OCT 2022)) (41 U.S.C. chapter 83).

____ (ii) Alternate I (OCT 2022) of 52.225-1.

____ (49) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

____ (ii) Alternate I [Reserved].

____ (iii) Alternate II (JAN 2025) of 52.225-3.

____ (iv) Alternate III (FEB 2024) of 52.225-3.

____ (v) Alternate IV (OCT 2022) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

x (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

____ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

____ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C.4505, 10 U.S.C. 3805).

____ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

x (59) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (OCT 2018) (31 U.S.C. 3332).

____ (60) 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

____ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

X (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

____ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

____ (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

____ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

____ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

____ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

____ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

____ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

____ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018), (41 U.S.C. chapter 67).

(xvi) x (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67.)

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67)

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E. O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$1,000 the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor -

(1) Any order for a single item in excess of the total value of all line items;

(2) Any order for a combination of items in excess the total value of all line items or

(3) A series of orders from the same ordering office within 7 days that together call for quantities exceeding the limitation in paragraph (b) (1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 3 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum". The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum".

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and

Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract 30 June 2031*.

**31 January 2032 if the option under FAR 52.217-8 is exercised.*

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

52.219-14 LIMITATIONS ON SUBCONTRACTING (DEVIATION 2021-O0008) (FEB 2023)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. "Similarly situated entity," as used in this clause, means a first-tier subcontractor, including an independent contractor, that—

- (1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and
- (2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to—

- (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
- (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
- (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are—

- (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
- (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are—

- (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
- (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for—

- (1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be

exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause –

[Contracting Officer check as appropriate.]

X By the end of the base term of the contract and then by the end of each subsequent option period; or

____ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.232-18 AVAILABILITY OF FUNDS (APR 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Kevin Clauson, kevin.m.clauson.com@us.navy.mil.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>

DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>

DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of clause)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022)

(a) Definition. Covered DoD official is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the Offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the Offeror, and who are expected to undertake activities on behalf of the Offeror for any resulting contract, are presently in compliance with all applicable post-employment restrictions, including those contained in 18 U.S.C. 207, 41 U.S.C. 2101-2107, 5 CFR part 2641, section 1045 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), and Federal Acquisition Regulation 3.104-2.

(End of provision)

252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)

(a) Definitions. As used in this provision--

Controlled technical information, covered contractor information system, covered defense information, cyber incident, information system, and technical information are defined in clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012 shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012(b)(2))--

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (see <http://dx.doi.org/10.6028/NIST.SP.800-171>) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2)(i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of—

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

(End of provision)

252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it “does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.”

(a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it “does” provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it “will provide covered defense telecommunications equipment or services,” the Offeror shall provide the following information as part of the offer:

- (1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).
- (2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.
- (3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).
- (4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)

(a) Definitions.

Basic Assessment, Medium Assessment, and High Assessment have the meaning given in the clause 252.204-7020, NIST SP 800-171 DoD Assessments.

Covered contractor information system has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this solicitation.

(b) Requirement. In order to be considered for award, if the Offeror is required to implement NIST SP 800-171, the Offeror shall have a current assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) (see 252.204-7020) for each covered contractor information system that is relevant to the offer, contract, task order, or delivery order. The Basic, Medium, and High NIST SP 800-171 DoD Assessments are described in the NIST SP 800-171 DoD Assessment Methodology located at <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>.

(c) Procedures.

(1) The Offeror shall verify that summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) for all covered contractor information systems relevant to the offer.

(2) If the Offeror does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the Offeror may conduct and submit a Basic Assessment to webptsmh@navy.mil for posting to SPRS in the format identified in paragraph (d) of this provision.

(d) Summary level scores. Summary level scores for all assessments will be posted 30 days post-assessment in SPRS to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) Basic Assessments. An Offeror may follow the procedures in paragraph (c)(2) of this provision for posting Basic Assessments to SPRS.

(i) The email shall include the following information:

(A) Cybersecurity standard assessed (e.g., NIST SP 800-171 Rev 1).

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract--

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (d)(1)(i) of this section, the Offeror shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will be achieved

(2) Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system assessed:

(i) The standard assessed (e.g., NIST SP 800-171 Rev 1).

(ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

(v) Date and level of the assessment, i.e., medium or high.

(vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).

(vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(3) Accessibility.

(i) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(ii) Authorized representatives of the Offeror for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(iii) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this section. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(End of provision)

252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)

(a) Definitions.

Basic Assessment means a contractor's self-assessment of the contractor's implementation of NIST SP 800-171 that-

(1) Is based on the Contractor's review of their system security plan(s) associated with covered contractor information system(s);

(2) Is conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology; and

(3) Results in a confidence level of "Low" in the resulting score, because it is a self-generated score.

Covered contractor information system has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

High Assessment means an assessment that is conducted by Government personnel using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that--

(1) Consists of--

(i) A review of a contractor's Basic Assessment;

(ii) A thorough document review;

(iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800-171 security requirements have been implemented as described in the contractor's system security plan; and

(iv) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "High" in the resulting score.

Medium Assessment means an assessment conducted by the Government that--

(1) Consists of--

(i) A review of a contractor's Basic Assessment;

(ii) A thorough document review; and

(iii) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "Medium" in the resulting score.

(b) Applicability. This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

(c) Requirements. The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800-171 DoD Assessment, as described in NIST SP 800-171 DoD Assessment Methodology at <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>, if necessary.

(d) Procedures. Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) Basic Assessments. A contractor may submit, via encrypted email, summary level scores of Basic Assessments conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology to webptsmh@navy.mil for posting to SPRS.

(i) The email shall include the following information:

(A) Version of NIST SP 800-171 against which the assessment was conducted.

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract--

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (b)(1)(i) of this section, the Contractor shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will be achieved

(2) Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:

- (i) The standard assessed (e.g., NIST SP 800-171 Rev 1).
 - (ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).
 - (iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.
 - (iv) A brief description of the system security plan architecture, if more than one system security plan exists.
 - (v) Date and level of the assessment, i.e., medium or high.
 - (vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).
 - (vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.
- (e) Rebuttals. (1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf).
- (2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security requirements not observed by the assessment team or to rebut the findings that may be of question.
- (f) Accessibility.
- (1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).
- (2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.
- (3) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(g) Subcontracts.

(1) The Contractor shall insert the substance of this clause, including this paragraph (g), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf items).

(2) The Contractor shall not award a subcontract or other contractual instrument, that is subject to the implementation of NIST SP 800-171 security requirements, in accordance with DFARS clause 252.204-7012 of this contract, unless the subcontractor has completed, within the last 3 years, at least a Basic NIST SP 800-171 DoD Assessment, as described in <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>, for all covered contractor information systems relevant to its offer that are not part of an information technology service or system operated on behalf of the Government.

(3) If a subcontractor does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the subcontractor may conduct and submit a Basic Assessment, in accordance with the NIST SP 800-171 DoD Assessment Methodology, to webpmsmh@navy.mil for posting to SPRS along with the information required by paragraph (d) of this clause.

(End of clause)

252.225-7967 PROHIBITION REGARDING RUSSIAN FOSSIL FUEL BUSINESS OPERATIONS
(DEVIATION 2024-O0006, REVISION 1) (FEB 2024)

(a) Definitions. As used in this clause -

"Business operations" means knowingly engaging in commerce in any form, including acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other known apparatus of business or commerce. The term does not include-

(1) Any shipment subject to price caps as specified in the -

(i) "Statement of the G7 and Australia on a Price Cap for Seaborne Russian-Origin Crude Oil", issued on December 2, 2022, between member countries of that coalition; or

(ii) "Statement of the G7 and Australia on Price Caps for Seaborne Russian-Origin Petroleum Products Berlin, Brussels, Canberra, London, Ottawa, Paris, Rome, Tokyo, Washington", issued on February 4, 2023, between such members, if such shipment complies with the applicable price caps; or

(A) Actions taken for the benefit of the country of Ukraine, as determined by the Secretary; or

(B) Actions taken to support the suspension or termination of business operations for commercial activities during the period beginning on the effective date and ending on December 31, 2029, including -

(1) Any action to secure or divest from facilities, property, or equipment;

(2) The provision of products or services provided to reduce or eliminate operations in territory internationally recognized as the Russian Federation or to comply with sanctions relating to the Russian Federation; and;

(3) Activities that are incident to liquidating, dissolving, or winding down a subsidiary or legal entity in Russia.

Fossil fuel company means an entity or individual that -

(1) Carries out oil, gas, or coal exploration, development, or production activities;

(2) Processes or refines oil, gas, or coal; or

(3) Transports, or constructs facilities for the transportation of, Russian oil, gas, or coal.

(b) Prohibition. In accordance with section 804 of the National Defense Authorization Act for Fiscal Year 2024 (Pub. L. 118-31), the Contractor is prohibited from entering into a subcontract or other contractual instrument for the procurement of products or services with any entity or individual that is known to be, or that is known to have fossil fuel business operations with an entity or individual that is, not less than 50 percent owned, individually or collectively, by -

(1) An authority of the government of the Russian Federation; or

(2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas -

- (i) Through the Russian Federation for sale outside of the Russian Federation; and
 - (ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.
 - (c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services.
- (End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

- (a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

- (b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

- (c) WAWF access. To access WAWF, the Contractor shall—

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

- (d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

- (e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

- (f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

- (1) Document type. The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

- (ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

TBD

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	TBD
Issue By DoDAAC	N00189
Admin DoDAAC**	N00189
Inspect By DoDAAC	TBD
Ship To Code	N/A
Ship From Code	N/A
Mark For Code	N/A
Service Approver (DoDAAC)	TBD
Service Acceptor (DoDAAC)	TBD
Accept at Other DoDAAC	N/A
LPO DoDAAC	TBD
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert “See Schedule” or “Not applicable.”)

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK/PERFORMANCE WORK STATEMENT.

NAVSUP Fleet Logistics Center Norfolk, Pentagon Directorate may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the Government or information already in the possession of the Government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data/information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive/confidential or proprietary data to the Government's AbilityOne Program support contractor personnel in order to perform close out services. Prior to the release of any such information to the support contractor, the support contractor will have in place with the Government a Non-Disclosure/Non-Use Agreement in accordance with the terms of the AbilityOne Program support contract.

Offerors may execute their own Non-Disclosure Agreement with the AbilityOne Program (AbilityOne contact information available from the contracting point of contact). The support contractor must provide copies of the executed agreements to the Contracting Officer and the Contracting Officer's Representative (COR) for the support contract; and the offeror/contractor for this acquisition must provide copies of the executed Agreement to the Contracting Officer for this acquisition. If the offeror/contractor seeks such a Non-Disclosure Agreement with the AbilityOne Program support contractor, the Agreement must be executed no later than the date of final delivery under the resulting NAVSUP Fleet Logistics Center Norfolk, Pentagon Directorate contract.

(1) SUPTXT204-9400 (05-24) Prescription and Alternative Language

The following shall be inserted in full text in all solicitations and contracts (including commercial acquisitions) which require contractor unclassified access to federally controlled facilities, sensitive information, Information Technology (IT) systems or protected health information. For commercial acquisitions, this text shall be incorporated into either the SOW or PWS.

* Consult with your CSM and ISSM/IAM for local policy when Authorized User (non-sensitive) access is required for non-U.S. citizens outside the U.S.

** Alternative language which may be included as appropriate:

Contractor and all Contractor employees with access to or responsibility for XXXXXX of this contract shall comply with DoD Directive 8500.1E IA, DoDI 8510.01 Risk Management Framework (RMF) for DoD IT, DoD Directive 5400.11 DoD Privacy Program, DoD 5200.2-R Personnel Security Program and HSPD 12

X.1 Be CAC ready at the properly designated IT System Level

X.2 At minimum, all contractor employees must possess/maintain the required background investigation as determined by the PDT and/or IT access user level. This requirement is critical in order to access the government data base systems It is the contractor's responsibility to ensure that 100% of the contractor employees have the ability to acquire a favorably adjudicated background investigation. In addition, interim approval of clearances is not authorized.

X.3 Be citizens of the U.S

X.4 If at any time, any contractor employee requiring a Common Access Card (CAC) is unable to possess/maintain the required adjudicated background investigation, the contractor shall immediately notify the NAVSUP COR to coordinate removal of such a person from work under this contract.

X.5 Contractor employees with access to or responsibility for nonpublic government data under this contract must comply with HSPD-12 Personal Identity Verification (PIV) issuance requirements, known as the CAC.

(1) SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION

The security text does not apply in cases where the contractor/vendor does not have access to Navy Marine Corps Intranet (NMCI) computers, is not issued a Common Access Card (CAC) and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This local text does not apply to non-United States (U.S.) Nationals (foreign nationals) who are contractor employees performing work overseas. This text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DoDM) 5200.2, Department of Defense (DoD) components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security

standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at11/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed Electronic Investigation (e-QIP)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.
- e. Common Access Card (CAC)

f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required.

Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

- a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.
- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information
- d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) five (5) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required. Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon

the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and

- Must have a favorably completed NACI or T1 investigation or equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions

- Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)

- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK/PERFORMANCE WORK STATEMENT.

EXPEDITING CONTRACT CLOSEOUT

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK/PERFORMANCE WORK STATEMENT.

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is: Kevin M. Clauson, code 221; Phone: (564) 230-2181; Email: kevin.m.clauson.civ@us.navy.mil; Address: 700 Robbins Ave., Bldg. 2B, Philadelphia, PA 19111

ADDENDUM TO FAR 52.212-1

ADDENDUM TO FAR 52.212-1 INSTRUCTIONS TO QUOTERS – COMMERCIAL ITEMS (BEST VALUE/TRADE-OFF)

I. GENERAL

The quoter's quote shall be in the form prescribed by and shall contain a response to each of the areas identified in this solicitation section. The following instructions are provided in addition to instructions to quoters contained elsewhere in this solicitation.

Initial quotes and any modifications thereto are to be submitted to the Contract Specialist on or before the closing date and time cited elsewhere in this Request for Quote (RFQ). All quotes shall be submitted to Contract Specialist (identified elsewhere in this solicitation) via email. No quotes shall be submitted by mail or by any other means except in the form explicitly stated herein.

Quoters shall submit their quote in two separate volumes as follows:

Volume I	Quote Original	Microsoft Word or Adobe PDF Format only
Non-price		

Volume II Price	Quote Original	Microsoft Excel Format only (supporting documentation can be provided in Microsoft Excel, Microsoft Word, or PDF format). In addition to the Price Quote, Quoters shall include the following in Volume II:
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Solicitation pricing pages completed by the quoter in Microsoft Word format as an attachment to Volume II Acknowledgement of RFQ amendments (if any) by email to the Contract Specialist at the time final quote is submitted.

The completion and submission of the above items will constitute a quote and will be considered the quoter's unconditional assent to the terms and conditions of this solicitation and any attachments and/or exhibits hereto. Quoters shall respond to all requirements of the solicitation document. Quoters are cautioned not to alter the solicitation. Any affirmative exception to the material terms and conditions of the solicitation will render the quoter ineligible for award. Alternate quotes are not authorized.

Potential quoters are encouraged to carefully review all solicitation requirements and, if they have questions concerning the solicitation, should submit one consolidated list of questions concerning the solicitation via email to the solicitation point of contact (Contract Specialist) NO LATER THAN THE DATE AND TIME SPECIFIED IN THIS SOLICITATION. Questions should be submitted as early as feasible prior to the above date and time; questions received later may be answered at the discretion of the Navy.

In the event any person who is not a bona fide employee of the quoter participated in the creation, formulation, or writing of any portion of the quote, a statement to this effect shall be included in the quote. Such statement shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the quoter and the portion of the quote in which the person participated.

II. REQUIREMENTS FOR QUOTE CONTENT

- (1) Do not include CLASSIFIED data in your quote.
- (2) Introduction and Purpose - This section specifies the format that quoters should use in quotes submitted in response to this solicitation. The intent is not to restrict the quoters in the manner in which they will perform their work but rather to ensure a certain degree of uniformity in the format of the quote for evaluation purposes.
- (3) Each volume should contain the following items in addition to the other information required by this solicitation:

Cover: The cover should indicate the following:

Title of the quote
Volume Number (I or II) RFQ number
Name and address of quoter
DUNS and CAGE numbers/codes

Table of Contents: The table of contents should provide detail sufficient to allow the important elements to be easily located. The use of tabs and dividers is encouraged.

- (4) Requirements for Style: Each quoter shall submit a quote that clearly and concisely sets forth the contractor's response to the requirements of the solicitation. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective quote are not desired and may be construed as an indication of the quoter's lack of cost consciousness. Elaborate artwork, expensive paper or

bindings, and expensive visual or other presentation aids are neither necessary nor desired. The quote shall contain all the pertinent information in sufficient detail in the one area of the quote where it contributes most critically to the discussion. When necessary, the quoter shall refer to the initial discussion and identify its location within its quote.

(5) Page Limitations

Volume I, "Non-price Quote," is limited to a maximum of **5 pages** in length inclusive of any charts, diagrams, and/or other graphics. Each "page" is defined as one sheet, 8 ½" x 11", with at least one inch margins on all sides, using a font with a point size of 12 or greater (e.g., "Times New Roman" style with 12 point font). Lines shall, at a minimum, be single-spaced. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 ½" x 11" pages. The cover sheet, table of contents (not to exceed one page per volume), tabs, and dividers will not count toward the page limit. The exceptions to the font size requirement shown above is that graphics, tables, and Past Performance Information Form may be completed with a point size of 10 or greater. Pages submitted in excess of the page limitations described above will not be evaluated. Volume II, "Price Quote," is not page limited but the quoter should limit its response to only that price/cost information that is necessary to respond to the requirements of the solicitation.

The non-price factors shall have the following page limitations:

Volume II, "Price Quote," is not page limited.

III. QUOTE CONTENT

(1) Volume I – Non-price Quote

Volume I of the quote shall include all information required for the evaluation of the quoter's Non-price quote. It shall exclude any reference to the cost aspects of the quote.

The Non-price evaluation factors are of equal importance:

(a) Performance Approach

The quoter shall provide in detail a performance approach that will successfully accomplish the requirements of the solicitation, including the Performance Work Statement (PWS). The Performance Approach should address: The quoter's plan to provide facilitated group discussion regarding sexual harassment and assault or similar topics to military members, including a detailed description of training content and methodology; the quoter's approach to ensure that all facilitators possess the experience required by the PWS; the quoter's approach to scheduling and back-up response for short-term and long term absences of qualified personnel; and an overview of the quoter's quality control plan to monitor and ensure the quality of services provided, including corrective action procedures. The quoter should provide any other information is considers relevant to providing a successful Performance Approach.

(b) Past Performance

The quoter shall demonstrate relevant past performance or affirmatively state that it possesses no relevant past performance. Relevant past performance is performance under contacts or efforts within the past five years that is of similar scope, and magnitude to that which is described in the solicitation.

To demonstrate its past performance, the quoter shall identify up to **two (2)** of its most relevant contracts or efforts within the past **five (5) years**, and provide any other information the quoter considers relevant to the requirements of the solicitation. Quoters shall provide a detailed explanation

demonstrating the relevance of the contracts or efforts to the requirements of the solicitation. If subcontractor experience is provided as part of the three of its most relevant contracts or efforts, the subcontractor experience will be given weight relative to the scope and magnitude of the aspects of the work under the solicitation that the subcontractor is quoted to perform. Therefore, the quoter's submission shall detail clearly the aspects of the work in the solicitation that the subcontractor performed.

The references will be evaluated in the aggregate in order to allow quoters who may not have the entire scope and magnitude of the requirement under one individual contract to still be considered acceptable if experience with the full scope and magnitude of the requirement can be demonstrated within the allotted number of references as described above.

The quoter should complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation. The forms will count toward the Volume I page limit described above. For additional information regarding a particular reference beyond that which will fit on the form, the quoter may continue onto another sheet of paper. Such continuation sheet(s) for submitted references will count toward the Volume I page limit.

(5) Volume II - PRICE QUOTE

Each page of each copy of Volume II should include the following legend:

Source Selection Information - See FAR 2.101 and 3.104

The Price Proposal in Volume II shall include the solicitation pricing pages completed by the offeror. The offeror shall include prices for each of the CLINs on the solicitation pricing pages and shall provide a total firm-fixed-price consisting of the total of all CLINs for the base period and all option periods. That total proposed price shall represent the offeror's firm-fixed-price for performance of all of the solicitation's requirements. For the purpose of preparing a price proposal, the offeror shall assume that the basic period of performance shall be from 01 July 2026 through 31 January 2032 with one five year ordering period and one six-month option performance periods as follows: 01 July 2031- 31 January 2032. A firm-fixed-price is not subject to any adjustment on the basis of the contractor's cost experience in performing the contract.

UNLIQUIDATED OBLIGATIONS

The Government intends to unilaterally deobligate any unliquidated obligations 90 days after each period of performance. Prior to doing so, the Contracting Officer (or Administrative Contracting Officer) will notify the contractor of the intended amount of deobligation and ask the contractor to confirm within one week that all invoices for the completed period of performance have been submitted and processed for payment (with the exception of any invoice for rate adjustment upon receipt of DCAA approved final rates for any cost-type CLINs or SLINs). Upon confirmation that all invoices have been submitted and processed for payment, or upon the contractor's failure to respond to the PCO/ACOs notification of intent to deobligate, the Contracting Officer or Administrative Contracting Officer will unilaterally deobligate the potential ULOs by reducing the funded amount to an amount equal to the contractors invoiced/paid amount for that contract period of performance.

Note: Reduction of cost-reimbursement CLINs or SLINs in accordance with the above DOES NOT change either party's obligations under a Final Invoice submitted upon DCMA establishing final rates for each CLIN and or SLIN.

ATTACHMENTS

1. Past Performance Information Form

